

TENTATIVE RULINGS

FOR: September 23, 2026

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(Cal. Rules of Court, Rule 1.150(c) & (d))**

**** All matters originally set in Dept. B will be heard in Dept. A ****

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

In The Matter of Karen K. Carson Revocable Trust

26PR000040

[1] RESPONDENT SUSANNAH G. CARSON’S DEMURRER TO PETITIONER’S
SECOND AMENDED PETITION

TENTATIVE RULING: The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Respondent Susannah G. Carson demurs, pursuant to California Code of Civil Procedure section 430.10, subdivisions (e) and (f), both generally and specially to the Petitioner’s Second

Amended Petition (SAP) filed with this Court on May 19, 2026, by Petitioner John P. Lowney, III.¹

A. PROCEDURAL BACKGROUND

Mr. Lowney commenced the instant action by filing, on February 19, 2026, a petition for orders: (1) invalidating a trust amendment based on lack of capacity, undue influence, and fraud; (2) removing Susannah G. Carson as Trustee; (3) cancelling the subject instrument; and (4) determining title to trust assets.

It appears uncontroverted that the subject trust (Trust) was an estate planning vehicle for decedent Karen K. Carson (Decedent), and that Decedent was survived by three children: Mr. Lowney, Respondent Susannah Carson, and Katherine K. Sukla. Pursuant to the allegations of the Petition, Mr. Lowry lived with, and served as Decedent's primary caregiver from June 29, 2019 through December 2024. (See *id.* at ¶ 4.) At that time, Susannah Carson removed Mr. Lowney from the residence and took over caretaking duties. (See *id.* at ¶ 5.) In January 2025, Decedent executed a trust restatement that disinherited Mr. Lowney and Ms. Sukla. (See *id.* at ¶ 6.) The gravamen of the Petition was that the restatement was the product of undue influence on Decedent by Susannah Carson.

On March 23, 2026, Susannah G. Carson demurred to the Petition arguing that each cause of action was time barred, pursuant to Probate Code section 16061.8, based on the assertion that "co-counsel of record for Respondent, Lori Hunt, served all heirs, including but not limited to, Petitioner John P. Lowney a valid, timely and complete 'Notification by Trustee' on April 5, 2025, disclosing a true and complete copy of the Trust." (Support Memorandum filed in support of Demurrer at 7:7-10.)

On April 14, 2026, Petitioner filed an opposition to the demurrer. However, on April 15, 2026, Petitioner filed an Amended Petition.

By Minute Order of May 6, 2026 (5/6 M.O.), the Court directed the Clerk to strike the Amended Petition on grounds that it was filed without leave of Court.

That Minute Order also addressed the then-pending demurrer. It provides, in part, as follows.

The matter came on originally for hearing on April 28, 2026. Attorneys David Balter and Nicholas Conti appeared on behalf of Respondent, and attorney Kevin Snyder appeared on behalf of Petitioner. At the hearing, Petitioner and Respondent stipulated to the fact that, on April 5, 2025, Attorney Lori Hunt served, by mail, on behalf of Respondent, the letter attached as Exhibit 1 to the

¹ Through the Support Memorandum, Respondent asks the Court to make a finding that the SAP "triggers the Trust's no-contest clause." The Court does not find that this issue is properly raised by the Notice of Demurrer and Demurrer. (See Code Civ. Proc. §1010 ["the notice of a motion, other than for a new trial, must state...the grounds upon which it will be made"]; see also Rules of Court, Rule 3.1110 ["[a] notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order"].)

Request for Judicial Notice filed in support of the instant demurrer, including the Notification by Trustee Pursuant to Probate Code Section 16061.7 attached thereto, and that, on April 21, 2025, Attorney Lori Hunt served, by mail, on behalf of Respondent, the letter attached as Exhibit 2 to the Request for Judicial Notice filed in support of the instant demurrer, including the Notification by Trustee Pursuant to Probate Code Section 16061.7 attached thereto. (See Minute order of April 28, 2026.)

The Court finds that the stipulation constitutes a judicial admission of the fact of the service of the Notices by Trustee Pursuant to Probate Code Section 16061.7. (See *Valerio v. Andrew Youngquist Construction* (2002) 103 Cal.App.4th 1264, 1271 [held: a judicial admission is “a waiver of proof of a fact by conceding its truth, and it has the effect of removing the matter from the issues”]; see also *Barsegian v. Kessler & Kessler* (2013) 215 Cal.App.4th 446, 451 (*Barsegian*), [‘Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission’].) ‘Facts established by pleadings as judicial admissions “are conclusive concessions of the truth of those matters, are effectively removed as issues from the litigation, and may not be contradicted, by the party whose pleadings are used against him or her.” (Ibid.)’

Based on that judicial admission, the Court sustained the demurrer. “Reviewing the substance of the Petition and its practical effect, the Court concludes that it is an action challenging the validity of a trust, and is therefore subject to the limitations of Probate Code section 16061.8. The Petition was filed February 19, 2026, more than 120 days from and after April 5, 2025, and is therefore barred pursuant to that statute.” (5/6 M.O.) However, the Court granted Mr. Lowrey 10 calendar days’ leave, from Notice of Entry of Order, to amend the Petition, “to state claims relating to undue influence, fraud, and breach of fiduciary duties, that do not, in substance and/or practical effect, constitute an attack on the validity of the Trust Amendment.” (*Ibid.*) Susannah Carson served and filed a Notice of Entry of Order on May 6, 2026.

The Court then granted Petitioner “10 calendar days from entry of the instant Order to file an amended petition as discussed below.” (5/6 M.O.)

On May 19, 2026, some 13 days after entry of the 5/6 M.O., Mr. Lowrey filed the Second Amended Petition (SAP). The instant demurrer followed.

B. NATURE OF CLAIMS AND DEMURRER

The SAP purports to assert claims for reformation of the Trust based on mistake of the settlor (Reformation Claim), and prays the Court to remove the Trustee for breach of fiduciary duty and to compel an accounting.

Ms. Carson contends that each of the claims are time barred and that the SAP fails to allege facts sufficient to state any claim. Ms. Carson further contends that the Reformation Claim is vague and ambiguous.

C. ANALYSIS

1. The SAP Was Not Timely Filed

As noted above, Petitioner failed to file the SAP within the 10 days' leave that the Court granted for doing so. The SAP is, therefore, subject to being stricken pursuant to Code of Civil Procedure, section 436, subdivision (b).

However, the Court finds that judicial economy is served by addressing the substantive arguments advanced by Respondent through the demurrer.

2. The Reformation Claim is Time Barred

“A person upon whom the notification by the trustee is served pursuant to paragraph (1) of subdivision (a) of Section 16061.7 . . . shall not bring an action to contest the trust more than 120 days from the date the notification by the trustee is served upon the person, or 60 days from the date on which a copy of the terms of the trust is delivered pursuant to Section 1215 to the person during that 120-day period, whichever is later.” (Prob. Code, § 16061.8.) “Actions that challenge the validity of a trust are actions that ‘contest the trust’ under section 16061.8. [Citation.] We are ‘not bound by its label’ in deciding whether an action is a trust contest. [Citation.] Rather, we ‘look to the substance of that [action] and its “practical effect.”’ [Citations.]” (*Hamilton v. Green* (2023) 98 Cal.App.5th 417, 424.)

Reviewing the substance of the SAP and its practical effect, the Court concludes that the Reformation Claim constitutes an action challenging the validity of the Trust, and is, based on the April 28, 2026, stipulation of counsel, and the analysis and ruling regarding judicial admission in the 5/6 M.O., barred by limitations period of Probate Code section 16061.8. The original Petition was filed February 19, 2026, more than 120 days from and after April 5, 2025, and is therefore time barred pursuant to that statute.

The Court finds that, based on the allegations of the SAP supporting the Reformation Claim, the holding in *Hamilton v. Green* (2023) 98 Cal.App.5th 417 (*Hamilton*) controls. As in *Hamilton*, the practical effect of the SAP is “to challenge the validity of the trust amendment to establish the pre-amendment trust should govern.” (*Id.* at 424.) The Reformation Claim “would require the [Court] to determine the validity of the trust amendment.” (*Id.* at 425.) “Although the prayer for relief does not expressly ask the court to invalidate the trust amendment, without a finding that the trust amendment was invalid, [Petitioner would have] no interest in the trust, and [would not be] entitled to the relief . . . sought.” (*Ibid.*) Based on the foregoing, the Court concludes that the Reformation Claim is “an ‘action to contest the trust’ pursuant to section 16061.8.” (*Ibid.*)

Based on the foregoing, the demurrer is SUSTAINED as to the Reformation Claim.

3. Petitioner Lacks Standing to Petition for Either Removal of the Trustee or an Accounting

The remainder of Petitioner's claims seek to enforce Petitioner's rights as a beneficiary of the Trust. (See, generally, SAP at ¶¶ 3, 24-43.)

"We begin with the general observation that standing for purposes of the Probate Code is a fluid concept dependent on the nature of the proceeding before the trial court and the parties' relationship to the proceeding, as well as to the trust (or estate). In general, [t]o have standing, a party must be beneficially interested in the controversy, and have some special interest to be served or some particular right to be preserved or protected. This interest must be concrete and actual, and must not be conjectural or hypothetical. . . . [T]he probate court has flexibility in determining whether to permit a party to participate as an interested party and may give standing to anyone having an interest in an estate which may be affected by a probate proceeding." (*Hamlin v. Jendayi* (2024) 105 Cal.App.5th 1064, 1074. Internal quotes and citations omitted.)

The Court agrees with Respondent that, as Petitioner's Reformation Claim is time barred, Petitioner lacks standing to Petition the Court for an order removing the Trustee or compelling an accounting of the trust.

Petitioner alleges / asserts that he "is the natural son of Decedent and an heir at law. He has standing to bring this petition under California Probate Code section 17200 as a person interested in the Trust and an heir of the Decedent." (SAP at ¶ 4.) Section 17200, subdivision (a), however, provides that, with exceptions having no apparent relevance here, "a trustee or beneficiary of a trust may petition the court under this chapter concerning the internal affairs of the trust or to determine the existence of the trust."

Petitioner alleges that "The January 2025 Restatement, on its face, purports to omit Petitioner and Katherine K. Sukla as beneficiaries and to name Respondent as the sole residuary beneficiary and as successor Trustee." (SAP at ¶ 14.) Based on the this allegation, Petitioner is not a beneficiary of the Trust. As his claim seeking to invalidate the January 2025 Restatement is time barred, he is not beneficially interested in the internal affairs of the Trust sufficient to Petition the Court either for an accounting or the removal of the Trustee.

4. Leave to Amend

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) However, the pleading party bears the burden of showing such reasonable possibility. (*Ibid.*) Here, the burden is on Petitioner to show in what manner he can amend the SAP, and how that amendment will change the legal effect of the pleading. (*Ibid.*; *Medina v. Safe Guard Products* (2008) 164 Cal.App.4th 105, 112 n.8; see also *Heritage Pac. Fin'l, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 994 [court did not abuse discretion in denying leave to amend where, despite ample opportunity, plaintiff failed to demonstrate it could cure defect].)

Petitioner asserts that “Petitioner can amend, if necessary, to identify more specifically the provisions to be reformed . . .” (Opposition at 8:13.)

The Court isn’t persuaded that more specifically identifying the provisions to be performed will remove the Reformation Claim from the scope of the limitations statute.

To the extent that Petitioner suggests that he can state a good claim by reducing the scope of the provisions of the Trust that he seeks reformation of, the Court finds that Petitioner is in a Catch-22. As noted above, Petitioner’s standing to seek the Court’s intervention in Trust matters, pursuant to Probate Code section 17200, including by reformation, requires allegations challenging the validity of the January 29, 2025, Restatement of the Trust. As further discussed above, however, he is time-barred from challenging the validity of the January 29, 2025, Restatement of the Trust. In this context, there appears, to the Court, no reasonable possibility that he can amend the SAP to state a claim.

- [1] RESPONDENT SUSANNAH G. CARSON’S MOTION FOR SANCTIONS (filed July 13, 2026)
- [2] RESPONDENT SUSANNAH G. CARSON’S MOTION FOR SANCTIONS (filed August 3, 2026)

TENTATIVE RULING: The motions are each DENIED.

On July 13, 2026, Respondent Susannah G. Carson filed a motion, pursuant to California Code of Civil Procedure section 128.7 (Section 128.7), for an order imposing monetary sanctions, in the form of reasonable attorney’s fees and costs, against Petitioner John P. Lowney, III and his attorney Kevin R. Snyder, jointly and severally, in the amount of \$15,896.50. Ms. Carson so moves “on the grounds that Petitioner and his attorney filed his May 19, 2026, Second Amended Petition for Orders for an improper purpose.” (Notice of Motion at 2:23-25.)

On August 3, 2026, Ms. Carson filed a second motion for sanctions, pursuant to Section 128.7, in the amount of \$1,927.50 “on the grounds that Petitioner and his attorney filed his May 19, 2026 Second Amended Petition for Orders for an improper purpose and failed to file a notice of hearing of the continued Petition Hearing in conformity with this Court’s June 17, 2026 order.” (Notice of Motion at 2:23-26.)

Code of Civil Procedure section 128.7, subdivision (b), provides, in part, that “[b]y presenting to the court, . . . , a pleading, . . . an attorney or unrepresented party is certifying that to the best of the person’s knowledge, information, and belief, formed after an inquiry reasonable under the circumstances [that] . . . [i]t is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.” If the Court finds that Code of Civil Procedure section 128.7, subd. (b) has been violated, it may award sanctions so long as the sanctions are “limited to what is sufficient to deter repetition of this conduct or comparable conduct by others similarly situated.” (Code of Civil Procedure section 128.7, subd. (d).)

Ms. Carson argues that the SAP is frivolous because it was filed “after the Court-ordered 10-day period had expired, [and] because it still seeks to effectively invalidate the Trust based on lack of capacity and undue influence.” (See Support Memo at 8:7-9.) She asserts that “all of Petitioner’s causes of action in the SAP attack the validity of the Trust and are thus time-barred under Probate Code section 16061.8 . . .” (*Id.* at 8:13-16.) Ms. Carson further complains of counsels repeated failure to serve notice of hearings on the operative petitions.

The Court is certainly sympathetic to Ms. Carson’s frustrations regarding Petitioner’s repeated failures to timely file pleadings, and to timely notice hearings. However, in assessing requests for sanctions pursuant to Code of Civil Procedure section 128.7, the Court is guided by Hanlon’s Razor: Never assume someone acted with malice when their actions can be explained by carelessness, incompetence, or a mistake.

That guidance is controlling here. While it is certainly conceivable that the repeated delays and unsuccessful pleadings *could* be evidence that Petitioner has been litigating with an improper purpose, they do not compel such a finding; they could, instead, be the product of zealous advocacy and lack of care.

Based on the foregoing, the Motions are, each, DENIED.

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Conservatorship of Deirdre Combs

26PR000101

[1] PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON

[2] PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE ESTATE

APPEARANCE REQUIRED

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Estate of Brian Joseph Kosi

26PR000163

PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO
ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The Petition is GRANTED IN PART.

Michael Torr is appointed as probate referee. The matter is set for a Status Hearing Re: Final Distribution on September 23, 2027, at 8:30 a.m. in Dept. B. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200. The clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Julian Murillo v. Nissan North America, Inc.

24CV001704

PLAINTIFF’S MOTION FOR ATTORNEYS’ FEES

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff is awarded attorneys’ fees in the amount of **\$8,217.50**. The fee award is payable within 60 days of entry of this order.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. By Minute Order dated September 9, 2026, the Court ordered the moving party to file and serve an amended notice which includes the missing notice. There is no amended notice on file. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Plaintiff Julian Murillo (“Plaintiff”) moves, pursuant to a signed settlement offer and the Song-Beverly Consumer Warranty Act (Civil Code section 1794, subdivision (d)), for an Order awarding his attorneys’ fees in the total amount of \$13,920.63, which consists of (1) \$7,936.50 in attorneys’ fees for Quill & Arrow, LLP; (2) a 1.25 multiplier enhancement on the attorneys’ fees (or \$1,984.13); and (3) an additional \$4,000.00 for Plaintiff’s counsel to review Defendant’s Opposition; draft the Reply; and attend the hearing on this Motion.

Defendant does not dispute Plaintiff’s entitlement to his reasonable attorneys’ fees. Rather, Defendant opposes the Motion, arguing that (1) Plaintiff’s counsel bills at excessive and unreasonable rates considering the routine nature of this lemon law case; (2) Plaintiff’s claimed fees are unreasonable and inflated; (3) Plaintiff’s counsel’s time records are rife with padded entries; and (4) Plaintiff’s fees, costs, and expenses incurred after the issuance of the accepted 998 offer were not reasonably necessary to the litigation. (Opp., 2:15-19.) Defendant requests a reduction of Plaintiff’s fees to \$3,894.10. This reduced amount is based on: (1) a reduction of billing hours from 22.7 to 10.5 (6.7 hrs prior to 998 offer issuance + 3.8 hrs for the present motion), (2) a reduction of hourly rates ranging from between \$175 to \$950 to a blended rate of \$150 for paralegals and administrative assistances, a blended rate of \$300 for eight associate attorneys, and \$400 for the managing attorney, and (3) denial of Plaintiff’s request for a multiplier and \$4,000 in anticipated fees. (Opp., 2:20-3:3.)²

² Defendant’s Opposition also seeks a reduction of Plaintiff’s costs. However, those are not part of Plaintiff’s Motion or properly before the Court at this time. Plaintiff served and filed a Memorandum of Costs on July 17, 2026. The proper vehicle for challenging costs claimed through a Memorandum of Costs is a motion to strike or tax

B. LEGAL DISCUSSION

A court has broad discretion in determining the amount of a reasonable fee, and the award of contractual attorney's fees is governed by equitable principles. (*Burkhalter Kessler Clement & George LLP v. Hamilton* (2018) 19 Cal.App.5th 38, 43.) The first step is to compute the "lodestar" figure, which is "the number of hours reasonably expended multiplied by the reasonable hourly rate." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The court may then adjust this figure upward or downward based on factors specific to the case in order to fix the fee at the fair market value for the legal services provided. (*Ibid.*) "[T]he burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable." (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 98.)

1. Lodestar Figure – Reasonable Rate

Here, Plaintiff argues that the hourly rates of the 13 timekeepers at his counsel's firm are appropriate given their relative experience and qualifications. (Mem., 8:21-9:2; see also Declaration of Kevin Y. Jacobson ("Jacobson Decl."), ¶¶ 3-6, 48-64.) Plaintiff further argues that his counsel's rates are similar to rates that California district courts and superior courts have awarded in other lemon law cases. (Mem., 9:3-10:11; see also Jacobson Decl., ¶¶ 7-47, Exhs. 1-39.) Plaintiff also argues that the hourly rates are all below those calculated by the Laffey Matrix. (Mem., 10:5-6, citing Jacobson Decl., ¶ 46, Exh. 40.) According to Plaintiff's biller table, the three principal billers (Attorneys Jahangani, Hovhannisyan, and Yang) account for 55.07% (or 12.5 hours) of the total time spent, and the remaining 10 timekeepers billed 1.7 hours or less, on the entire matter. (Mem., 10:15-28.) Attorney Jahangani's requested hourly rate is \$350, Attorney Hovhannisyan's is \$395, and Attorney Yang's is \$375.

Defendant argues that Plaintiff has failed to show that his counsels' requested rates are the prevailing rates for attorneys conducting non-contingent litigation of the same type. Defendant, relying on *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, argues in favor of a reduced blended rate as follows: \$400 for managing attorney Jacobson, \$300 for the eight other attorneys, and \$150 for the four paralegals and administrative assistants. Defendant also argues that the Court in *Martinez v. Ford Motor Company* (S.D. Cal. Nov. 14, 2025), No. 25-cv-01213-AJB-DDL, 2025 WL 3190606, found Plaintiff's counsel's hourly rates unreasonable.

As an initial matter, the Court can find no requested hourly rates for timekeepers Lopez, Oganezova, Tellez, and Mercado. Nor does the Jacobson Decl. sufficiently address those timekeepers' experience and qualifications (Oganezova, Tellez, and Mercado are not even mentioned therein). Without the foregoing, the Court is unable to determine whether those timekeepers' hourly rates are reasonable. As such, the requested fees incurred by Lopez, Oganezova, Tellez, and Mercado are DENIED.

costs, not an opposition to the prevailing party's motion for *attorneys' fees* that does not raise or request costs. As such, the Court disregards Defendant's request in Opposition pertaining to Plaintiff's costs.

The Court does not find the opinions of the district courts or sister superior courts, offered by Plaintiff, particularly helpful given that those opinions were issued from courts located in different communities (mainly large southern California counties), for which a separate prevailing reasonable hourly rate applies. The opinions that Plaintiff points to consequently do not show that the requested rates are in line with prevailing rates in Napa County. The lodestar figure must be calculated by using the reasonable hourly rate in the local community for similar work. (See *PLCM Group, Inc.*, *supra*, 22 Cal.4th at 1095.) For this reason, Plaintiff’s reliance on the Laffey Matrix—based on rates for attorneys practicing federal litigation in the District of Columbia—is also misplaced. (See Jacobson Decl., Exh. 40; see also *Camacho v. Bridgeport Financial, Inc.* (2008) 523 F.3d 973, 979.)

The Court has reviewed *Martinez v. Ford Motor Company* (S.D. Cal. Nov. 14, 2025), No. 25-cv-01213-AJB-DDL, 2025 WL 3190606, relied upon by Defendant. Although it is not binding authority, the fact that it reviews the reasonableness of fees at the same law firm at issue here is enlightening. There, a San Diego superior court, in a lemon law matter, reduced the hourly rate of Attorney Jacobson and other partners at Quill & Arrow with a bar admission in 2018 to \$425, Attorney Jahangani and other associates at Quill & Arrow with a bar admission in 2024 to \$235, associates at Quill & Arrow with a bar admission in 2025 to \$225, associates at Quill & Arrow with a bar admission in 2017 to \$385, and associates at Quill & Arrow with a bar admission in 2021 to \$375.

While San Diego County is not Napa County, the Court is confident that Napa County rates would not exceed those in San Diego County. Thus, the *Martinez* analysis is persuasive authority upon which to reduce the hourly rates requested by Plaintiff’s counsel for this routine lemon law case in Napa County. The following chart depicts the material information presented in this motion and as analyzed by *Martinez*:

Attorney	Year of Bar Admission	<i>Martinez</i> Applied Rate (2024)	Pltf.’s Requested Rate (Year)	Def.’s Requested Reduced Rate
Altman	1986		\$950 (2025)	\$400
Jacobson	2018	\$425	\$550 (2025)	\$400
Jung	2021	\$375	\$495 (2025)	\$300
Yang	2022	>\$235, < \$385	\$375 (2025)	\$300
Stocca	2023	>\$235, < \$385	\$350 (2025)	\$300
Jahangani	2024	\$235	\$350 (2025)	\$300
Brauns	2025	\$225	\$350 (2025)	\$300
Hovannisyan	2025	\$225	\$395 (2026)	\$300
Zhang	2025	\$225	\$395 (2026)	\$300

While the Court notes that the circumstances of this 22.7-hour case are distinguishable from the 595-hour case of *Mikhaelipoor* (which utilized a blended rate), the Court finds that, for Attorneys Jahangani, Brauns, Hovannisyan, and Zhang, Defendant’s requested reduced rate exceeds the rate found reasonable in *Martinez*. Moreover, Defendant’s requested reduced rate for Attorneys Yang and Stocca seems to fall right in the range of reasonableness contemplated by *Martinez*. Thus, the Court does not find Defendant’s request for a blended rate of \$300 for these

timekeepers unreasonable and, for the foregoing timekeepers, the Court adopts Defendant's requested reduction to \$300 / hour.

For Attorney Jung, the Court finds that an hourly rate of \$400 is sufficiently supported by his experience and reasonably consistent with the rate in Napa County for similar work. For Attorney Jacobson, the Court finds that an hourly rate of \$450 is sufficiently supported by his experience and reasonably consistent with the rate in Napa County for similar work. And, for Attorney Altman, the Court finds that an hourly rate of \$600 is sufficiently supported by his experience and reasonably consistent with the rate in Napa County for similar work.

2. Lodestar Figure – Reasonable Hours

Plaintiff argues that counsel spent 22.7 hours litigating the case from September 30, 2024 through the filing of this Motion on July 17, 2026—almost a two year time frame. Attached to Plaintiff's counsel's declaration is a breakdown of hours spent by date, description of work, and hours by the tenth of an hour. (Jacobson Decl., at Exh. 42.)

Defendant presents its requested reduced hours with little explanation other than "the simplicity of the matter and the evidence demonstrating Quill and Arrow LLP's duplicated, padded, and recycled work." (See Opp., 9:7-26.) Defendant further argues that Plaintiff's counsel's 12.2 hours incurred after Defendant made its 998 offer on November 6, 2025 should be deducted.

The Court has reviewed the breakdown of hours provided by Plaintiff and does not find any of the tasks reported therein or the amount of hours spent facially unreasonable, duplicative, or padded. Defendant fails to identify any specific task or amount of hours in Plaintiff's Exhibit 42 that it contends is duplicative, padded, or recycled. Moreover, as Plaintiff contends in Reply, Defendant fails to provide any authority prohibiting hours spent after issuance of a 998 offer and before the deadline to accept. "Section 998 is a cost-shifting statute that penalizes a party who rejects a reasonable offer and fails to obtain a better result; it says nothing about a party who accepts an offer within the thirty-day window that the statute and [Defendant's] own offer provided." (Reply, 7:5-8.) The Court finds that Plaintiff has sufficiently shown that the time spent after the issuance of Defendant's 998 offer was reasonably necessary for evaluating the 998 offer. Thus, the Court does not reduce the amount of time spent in this action.

Based on the foregoing, the lodestar amount through filing of the Motion is **\$5,795**, the calculation for which is depicted below:

Attorney	Approved Rate	Hours Spent	Total Fees
Altman	\$600	0.2	\$120
Jacobson	\$450	0.3	\$135
Jung	\$400	1.7	\$680
Yang	\$300	3	\$900
Stocca	\$300	1.3	\$390
Jahangani	\$300	5.7	\$1,710
Brauns	\$300	0.7	\$210

Hovhannisyan	\$300	3.8	\$1,140
Zhang	\$300	1.7	\$510

Plaintiff's showing of additional time (5.7 hours) spent reviewing the Opposition and drafting the Reply is sufficient. The Court finds that the reasonable hourly rate for the attorney who spent this time, Attorney Chipman, who was admitted to the bar in 2019, is \$425. The Court does not award fees for anticipated time. (See Reply Declaration of Kevin Y. Jacobson, ¶¶ 6(b)(vii), 7.) Thus, the sum of **\$2,422.50** (= 5.7 hrs x \$425) shall be added to the above total.

Based on the foregoing, the reasonable amount of Plaintiff's attorneys' fees is **\$8,217.50** (= \$5,795 through filing of motion + \$2,422.50 reply).

3. Adjustment to Lodestar

The lodestar figure can be adjusted up or down based on several factors including: (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff; and (4) the skill exhibited by counsel. (*In re Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556.)

Plaintiff requests a 1.25 multiplier on Plaintiff's attorney's fees based on the fact that counsel obtained an excellent outcome and endured substantial risks posed by this litigation by representing Plaintiff on a contingency fee basis. (Mem., pp. 11-13, citing Jacobson Decl. at ¶¶ 31, 89.)

In Opposition, Defendant requests that the Court deny the multiplier request.

Whether to apply an adjustment to the lodestar is entirely within the Court's discretion. (*PLCM Group, Inc.*, *supra*, 22 Cal.4th at 1095.) The Court does not find that the relevant factors weigh in favor of any adjustment in this routine lemon law case. Thus, Plaintiff's request for a multiplier to the lodestar amount is DENIED.

C. CONCLUSION

Plaintiff is awarded fees in the amount of **\$8,217.50**.

Mayra Aguilar v. General Motors LLC

25CV001964

PLAINTIFF'S MOTION FOR DETERMINATION OF ATTORNEY FEES AND COSTS
UNDER SETTLEMENT AGREEMENT

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff is awarded fees in the amount of \$14,232 and costs in the amount of \$1,061.50 against Defendant. \$15,293.50 is payable within 60 days of entry of this order.

A. PRELIMINARY MATTERS

Plaintiff Mayra Aguilar (“Plaintiff”) moves, pursuant to Code of Civil Procedure section 1794, subdivision (d) and 15 U.S.C. 2310, subdivision (d)(2), for an order determining the amount of her attorney fees, costs, and expenses under the parties’ settlement agreement. Plaintiff seeks \$15,060 in fees and \$1,061.50 in litigation costs and expenses for services rendered and costs incurred since August 2025, as well as a 20% fee enhancement in light of the excellent result achieved and the delay in payment. (Mem., 1:8-10, 9:9-11.)

Defendant does not dispute Plaintiff’s entitlement to her reasonable attorneys’ fees and costs. Defendant disputes the amount of hours spent, hourly rates charged, and costs incurred by Plaintiff’s counsel, contending the Court should award no more than \$7,350 in attorneys’ fees and \$661.50 in costs.

B. COSTS

In order to recover costs, the prevailing party is required to file and serve a memorandum of costs. (Cal. Rules of Court, rule 3.1700(a).) To be recoverable, costs must be reasonable in amount and reasonably necessary to the conduct of litigation. (§ 1033.5, subd. (c)(1)-(3).)

If the items listed in the memorandum of costs appear proper on their face, then the verified statement is *prima facie* evidence that the costs, expenses, and services therein listed were necessarily incurred by that party, and the burden is on the party seeking to tax costs to show that an item is not allowable or is not reasonable or necessary. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266-67; *Perko’s Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 243; *Oak Grove School Dist. v. City Title Ins. Co.* (1963) 217 Cal.App.2d 678, 698-99.)

Although the proper vehicle for challenging costs claimed through a Memorandum of Costs is ordinarily a motion to strike or tax costs, here, Plaintiff’s instant motion specifically seeks an order granting her the costs set forth in her costs memorandum. Thus, because Plaintiff has put her costs at issue on the motion, Defendant’s opposition addressing the amount is properly before the Court.

Here, Plaintiff provided a Memorandum of Costs, attached as Exhibit 11 to the Declaration of Aliaksandra Valitskaya (“Valitskaya Decl.”), that includes \$495.00 in filing and motion fees, \$150.00 in jury fees, \$250 in deposition costs, \$51.63 in service of process fees, and \$114.87 in fees for electronic filing or service.

Defendant disputes the jury fees and deposition costs, arguing that neither was necessary to litigation. (Opp., 8:27-9:8.) As to the jury fees, Defendant argues that a jury was never empaneled and the trial was vacated. True; however, the Court’s procedures require a party requesting a jury trial to post jury fees within one week from the trial setting conference, which, here, was in early 2026 prior to execution of the settlement agreement. Thus, Defendant has failed to meet its burden to show this cost was unnecessary or unreasonable. As to the deposition

costs, Defendant argues that no depositions ever occurred. While this initially raised a doubt in the Court’s mind about the propriety of Plaintiff’s claimed deposition costs, Plaintiff clarifies in Reply that the \$250 was incurred because Defendant’s PMK deposition was set to go forward the day after Defendant made its settlement offer, at which point it was too late to avoid the \$250 charge for cancelling the deposition. (Reply Declaration of Aliaksandra Valitskaya (“Reply Valitskaya Decl.”) ¶ 9.)

Thus, the Court does not find it appropriate to reduce Plaintiff’s claimed costs.

C. ATTORNEYS’ FEE

A court has broad discretion in determining the amount of a reasonable fee, and the award of contractual attorney’s fees is governed by equitable principles. (*Burkhalter Kessler Clement & George LLP v. Hamilton* (2018) 19 Cal.App.5th 38, 43.) The first step is to compute the “lodestar” figure, which is “the number of hours reasonably expended multiplied by the reasonable hourly rate.” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The court may then adjust this figure upward or downward based on factors specific to the case in order to fix the fee at the fair market value for the legal services provided. (*Ibid.*) “[T]he burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable.” (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 98.)

1. Lodestar Figure – Reasonable Rate

Here, Plaintiff requests fees for a total of two attorneys: \$600/hr for Attorney Timothy Whelan (bar admission in 2008) and \$550/hour for Attorney Aliaksandra Valitskaya (bar admission in 2013). Plaintiff submits evidence to support counsel’s legal experience and the reasonableness of their rates. (See Valitskaya Decl., ¶¶ 10-13, 15; Declaration of Timothy Whelan (“Whelan Decl.”), ¶¶ 5-7.)

The Court finds the requested hourly rates for each attorney to be reasonable within the local community for similar work, considering the submitted evidence regarding each of their levels of experience. (See *PLCM Group, Inc.*, *supra*, 22 Cal.4th at 1095.)

2. Lodestar Figure – Reasonable Hours

Plaintiff argues that counsel spent 26.8 hours litigating the case from August 2025 through the filing of this Motion on July 23, 2026—almost a one year period. Attached to Plaintiff’s counsel’s declaration is a breakdown of hours spent by date, description of work, and hours by the tenth of an hour. (Valitskaya Decl., at Exh. 2.)

Defendant argues that Plaintiff’s counsel overbilled regarding specific tasks. (Opp., 4:6-6:2.)

The Court has reviewed the breakdown of hours provided by Plaintiff and does not find any of the tasks reported therein or the amount of hours spent facially unreasonable. The Court does not agree that the entries identified by Defendant should be reduced, as they reflect fees

incurred that were reasonably necessary to achieve Plaintiff's litigation objectives. As Plaintiff clarifies in Reply, the 26.8 hours presented on this Motion *exclude* administrative tasks performed by support staff. (Reply Valitskaya Decl., ¶ 6.) Thus, the Court finds that 26.8 hours is a reasonable amount of time spent in this action.

Based on the foregoing, the lodestar amount through filing of the Motion is \$11,485.

Plaintiff's showing of additional time (5 hours) spent reviewing the Opposition and drafting the Reply is sufficient and reasonable. (Reply Valitskaya Decl., ¶ 8.) However, the Court does not award fees for anticipated time. (*Ibid.*) Thus, the sum of \$2,750 (= 5 hrs x \$550) shall be added to the above lodestar amount.

Based on the foregoing, the reasonable amount of Plaintiff's attorneys' fees is **\$14,232** (= \$11,482 through filing of motion + \$2,750 reply).

3. Adjustment to Lodestar

The lodestar figure can be adjusted up or down based on several factors including: (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff; and (4) the skill exhibited by counsel. (*In re Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556.)

Plaintiff requests a 20% multiplier on Plaintiff's attorney's fees with little to no application of the law to the facts or circumstances at hand. In Opposition, Defendant requests the Court deny the multiplier request.

Whether to apply an adjustment to the lodestar is entirely within the Court's discretion. (*PLCM Group, Inc.*, *supra*, 22 Cal.4th at 1095.) The Court does not find that the relevant factors weigh in favor of any adjustment in this routine lemon law case. Thus, Plaintiff's request for a multiplier to the lodestar amount is DENIED.

D. CONCLUSION

Plaintiff is awarded fees in the amount of **\$14,232** and costs in the amount of **\$1,061.50**.

.....
Jessica Fernandez v. SRGA Resort LP et al

25CV002248

DEFENDANT SRGA RESORT, LP'S MOTION FOR LEAVE TO WITHDRAW ITS ANSWER

TENTATIVE RULING: The motion is GRANTED. The Court sets the matter for Case Management Conference on October 23, 2026, at 9:30 in Dept. B. The Case Management Conference currently set for November 6, 2026, at 8:30 in Dept. A is vacated. The Clerk is directed to send notice to the parties.

Defendant SRGA Resort (SRGA) moves, pursuant to California Code of Civil Procedure section 585, subdivision (b), for an order lifting the stay and granting Defendant SRGA leave to withdraw its Answer to Plaintiff's Complaint, so that Plaintiff Jessica Fernandez may proceed to request entry of default against Defendant SRGA.

SRGA cites caselaw sanctioning a trial court's decision to permit a defendant to withdraw its operative answer. (See, *e.g.*, *Brown v. Brown* (1932) 125 Cal.App. 429, 438 [held: where no fraudulent purpose is established, appellant "is in no position to complain of the court's action in permitting his co-defendant's answer to be withdrawn"]; see also *Israel v. Super. Ct. of San Diego Co.* (1919) 43 Cal.App. 711, 713 ["That the court in permitting the defendant Bryan to withdraw his answer was acting within its jurisdiction is not and, in our opinion, cannot be, questioned in this proceeding"].)

There is no opposition to the Motion in the Court's file.

Based on the foregoing, the Motion is GRANTED.

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Tifnique Garrison v. Store Storage

26CV000996

[1] MOTION TO CONTINUE PENDING RETENTION OF LEGAL COUNSEL

TENTATIVE RULING: The motion appears MOOT.

By way of the instant Motion, Plaintiff requests time to hire counsel and requests that the August 19, 2026 hearing on Plaintiff's Application for Writ of Possession be moved to October 8, 2026. The instant Motion was filed August 18 after the Tentative Ruling for the August 19 hearing was already posted. Nevertheless, the August 19 hearing has passed, rendering the present Motion moot. Moreover, the August 19 Minute Order continued the Application for Writ hearing anyway, albeit for Plaintiff's failure to file a Proof of Service.

To the extent the present Motion is not moot, there is no Proof of Service of the Motion on Defendant. As a result, the Court is unable to ascertain whether Defendant received sufficient notice and the hearing would need to be continued. (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 ["The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question."].)

[2] PLAINTIFF'S APPLICATION FOR WRIT OF POSSESSION AND TEMPORARY RESTRAINING ORDER

TENTATIVE RULING: The matter is CONTINUED one final time to October 23, 2026, at 8:30 a.m. in Dept. A to allow Plaintiff additional time to provide sufficient notice of the hearing and application and to file Proof of Service (POS).

By Minute Order dated August 19, 2026, the matter was continued for lack of a POS, and Plaintiff was directed to (1) prepare an Amended Notice of Hearing which contains the continued

hearing date, (2) provide timely service of both the Amended Notice and July 14, 2026 Application on all other parties pursuant to Code Civ. Proc., § 1005, subd. (b), and (3) file a POS prior to the continued hearing pursuant to Rules of Court, rule 3.1300, subd. (c).

There is no Amended Notice or POS in the Court file. That said, the Court notes the representations made through Plaintiff's Motion to Continue Pending Retention of Legal Counsel, filed August 18, 2026, regarding Plaintiff's wish for additional time to retain counsel. Thus, the Court finds an additional continuance for that reason appropriate.

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Nai Saechao v. Wal-Mart Associates, Inc

26CV001131

[1] DEFENDANTS' DEMURRER TO PLAINTIFF'S COMPLAINT

TENTATIVE RULING: The demurrer is OVERRULED.

A. PROCEDURAL MATTERS

By Minute Order dated August 25, 2026, the Court continued the matter and directed the moving party to provide an amended notice with notice of the Court's tentative ruling system as required by Local Rule 2.9. The moving party filed an amended notice; however, the Court notes that the tentative ruling notice contained therein is not the current version required under Local Rule 2.9, effective 1/1/26. Counsel is directed to review the Local Rules and provide the correct notice going forward.

Defendants Wal-Mart Associates, Inc. ("Wal-Mart") and Parker Capps ("Capps") (collectively "Defendants") demur, pursuant to Code of Civil Procedure section 430.10,³ subdivision (e), to the Second, Sixth, Seventh, Eighth, Tenth, Eleventh, Twelfth, Thirteenth, Fourteenth Causes of Action asserted in the Complaint filed by Plaintiff Nai Saechao ("Plaintiff").

B. LEGAL STANDARD

A complaint must contain "facts constituting the cause of action." (§ 425.10, subd. (a)(1).) The party against whom a complaint has been filed may object, by demurrer, on the grounds that "[t]he pleading does not state facts sufficient to constitute a cause of action," "[t]he pleading is uncertain," or "[i]n an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct." (§ 430.10, subds. (e)-(g).)

A demurrer is treated as "admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must "construe the allegations of a complaint liberally in favor of the pleader." (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) The Court must also accept as true facts that may

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because “[a] demurrer tests only the legal sufficiency of the pleading . . . the question of plaintiff’s ability to prove the [] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

C. DISCUSSION

The Complaint asserts harassment, retaliation, and wage and hour causes of action arising from Plaintiff’s requests for accommodations and leave due to her pregnancy while employed by Wal-Mart.

Defendants argue that the Second Cause of Action for Harassment fails because the conduct alleged in Paragraphs 16, 17, 19, and 50: (1) constitutes a type of necessary action to carry out the duties of the business and personnel management, which does not qualify as actionable harassment and (2) is not sufficiently severe or pervasive as to alter the conditions of Plaintiff’s employment and create an abusive working environment.

The Court disagrees with Defendants that the conduct alleged in the Complaint can only, as a matter of law, constitute business and personnel management conduct and not rise to the level of actionable harassment. Paragraph 16 alleges that Capps “encouraged Plaintiff to step down from her position or transfer to a lower-paying role at another store” due to her anticipated leave coinciding with the holiday season. Paragraph 17 alleges that Plaintiff received written disciplinary action for “consistently fail[ing] to maintain basic standards” based upon, allegedly, a single instance when Plaintiff was not at work. Paragraph 19 alleges that Defendants assigned Plaintiff workloads that made it impossible to complete her duties within her accommodated hours, and, at the same time, blamed Plaintiff for not adhering to the accommodated schedule.

Taking these allegations as true and weighing all inferences in favor of Plaintiff, the Court does not find that the allegations of the Complaint fail, as a matter of law, to state facts supplying the elements of a harassment cause of action.

Thus, the demurrer to the Second Cause of Action is OVERRULED.

Defendants argue that the Sixth Cause of Action for Retaliation in Violation of the California Family Rights Act (“CFRA”), Seventh Cause of Action for Interference with Rights Under the CFRA, and Eighth Cause of Action for Interference with Pregnancy Disability Leave Rights fail because they are merely duplicative of the Fifth Cause of Action for Retaliation in Violation of FEHA. Specifically, Defendants contend that the Sixth, Seventh, and Eighth causes of action add nothing to the Fifth Cause of Action by way of fact or theory of recovery.

The Court acknowledges that there is a split, among the California Court of Appeal Districts, regarding whether duplicative pleading is a proper ground for demurrer. The Fourth District of the California Court of Appeals has held that a demurrer may properly be sustained

where a cause of action is entirely duplicative of another cause of action in the same complaint. (See *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290 and *Rodrigues v. Campbell Industries* (1978) 87 Cal.App.3d 494, 501.) The Sixth District and, more recently, Fifth District of the California Court of Appeal have held that a court cannot sustain a demurrer to a cause of action solely on the basis that it is duplicative or redundant. (See *Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858 and *R.L. v. Merced City School Dist.* (2025) 114 Cal.App.5th 89, 119 [adopting *Blickman*'s holding that "[r]edundancy, however, is not enumerated as one of the statutory grounds on which a demurrer may be sustained"].) It does not appear that the First District of the California Court of Appeals has addressed this issue.

Plaintiff argues that the Fifth through Eighth Causes of Action are not duplicative because each asserts a distinct statutory claim and entitlement: the Fifth Cause of Action arises under Gov. Code section 12940, subdivision (h); the Sixth arises under Gov. Code section 12945.2; the Eighth arises under Gov. Code section 12945, subdivision (a)(1); and the Seventh is based on an interference of rights under Gov. Code section 12945.2, which she contends is a different entitlement as it does not require the element of motive that is required for a standard Gov. Code section 12945.2 violation.

Based on Plaintiff's contention that the separate statutes and entitlements require different standards and elements of proof, the Court finds the organization of Plaintiff's Complaint, separated by title of each theory, to be clear and helpful, even assuming *arguendo* the Sixth through Eighth causes of action add nothing to the Fifth Cause of Action by way of fact or theory of recovery. For this reason, the Court elects to follow *R.L.* and *Blickman*'s reasoning, here, that duplicative pleading, "if it justifies any judicial intervention at all, is ordinarily dealt with most economically at trial, or on a dispositive motion such as summary judgment." (*Blickman, supra*, 162 Cal.App.4th at 890.)

Thus, the demurrer to the Sixth, Seventh, and Eighth Causes of Action is OVERRULED.

Defendants argue that the Tenth through Fifteenth Causes of Action for various violations of the Labor Code against Capps fail because the Complaint does not contain allegations sufficient to establish that Capps was a managing agent of Wal-Mart, such that Labor Code section 558.1 applies. (See Lab. Code, § 558.1, subds. (a)-(b) [allowing "an owner, director, officer, or managing agent of the employer" to "be held liable as the employer for [specified Labor Code violations]"].) "'Managing agents' are employees who exercise substantial discretionary authority over decisions that ultimately determine corporate policy." (*White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 573.)

Plaintiff argues that the Complaint's allegations are sufficient, under the following test enumerated in *Usher v. White* (2021) 64 Cal.App.5th 883, 869-97 (authority cited by Defendants), to apply Labor Code section 558.1: "[T]o be held liable under section 558.1, an 'owner' ... must either have been personally involved in the purported violation of one or more of the enumerated provisions; or, absent such personal involvement, had sufficient participation in the activities of the employer, including, for example, over those responsible for the alleged

wage and hour violations, such that the ‘owner’ may be deemed to have contributed to, and thus for purposes of this statute, ‘cause[d]’ a violation.” (*Usher, supra*, 64 Cal.App.5th at 896-97.)

The Court finds that the Complaint sufficiently alleges facts indicating Capps’ personal involvement and/or participation in the purported wage and hour violations. (See Compl., ¶¶ 4, 17.) At the very least, contrary to the inference Defendants seek to have the Court reach at this juncture, the Complaint does not allege facts affirmatively negating Capps’ role as a “managing agent.”

Thus, the demurrer to the Tenth through Fifteenth Causes of Action is OVERRULED.

[2] DEFENDANTS’ MOTION TO STRIKE PORTIONS OF PLAINTIFF’S COMPLAINT

TENTATIVE RULING: The motion is GRANTED. Plaintiff is granted 10 days’ leave from notice of entry of order to amend in accordance with this ruling.

A. PRELIMINARY MATTERS

By Minute Order dated August 25, 2026, the Court continued the matter and directed the moving party to provide an amended notice with notice of the Court’s tentative ruling system as required by Local Rule 2.9. The moving party filed an amended notice; however, the Court notes that the tentative ruling notice contained therein is not the current version required under Local Rule 2.9, effective 1/1/26. Counsel is directed to review the Local Rules and provide the correct notice going forward.

Defendants Wal-Mart Associates, Inc. (“Wal-Mart”) and Parker Capps (“Capps”) (collectively “Defendants”) move, pursuant to Code of Civil Procedure sections 435 and 436, to strike the punitive damages allegations from the Complaint filed by Plaintiff Nai Saechao (“Plaintiff”).

B. LEGAL STANDARDS

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading [or] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) “Irrelevant matter” means an immaterial allegation in a pleading including allegations “neither pertinent to nor supported by an otherwise sufficient claim or defense,” or “a demand for judgment requesting relief that is not supported by the allegations of the complaint.” (Code Civ. Proc., § 431.10(b)(3); *Turman v. Turning Point of Cent. Cal., Inc.* (2010) 191 Cal.App.4th 53, 63-64.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437, subd. (a).) The Court is to “read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Turman, supra*, 191 Cal.App.4th at 63.)

To adequately state a claim for exemplary damages, a complaint must contain allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a); *Turman, supra*, 191 Cal.App.4th at 63.) “Malice” includes “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at subd. (c)(2).)

C. DISCUSSION

The Court finds no factual allegations in the Complaint that Defendants acted with oppression or malice. Parroting the language of the punitive damages statute is insufficient without facts to support the allegation. Plaintiff asserts that “the Complaint alleges far more than the bare violation of a statute.” (Opp., 6:9-14, citing Compl., ¶¶ 14-19.) The Court disagrees. While the Court finds the allegations sufficient to state a cause of action (as found in the Court’s concurrent ruling on Defendants’ demurrer), the Court does not find that those factual allegations rise to the level of malice or oppression.

Based on the foregoing, the Court does not find that the factual allegations of the SAC are sufficient to support a prayer for punitive damages. The Court, therefore, finds good cause for striking the language parroting the punitive damages statute as well as the punitive damages prayer, as identified in Defendants’ Notice of Motion.

It is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (*Goodman*).) The Court finds, from the allegations of the Complaint, a *possibility* that Plaintiff can amend to allege facts that would support a finding of malice or oppression. Therefore, the Court grants Plaintiff leave to amend the Complaint for this limited purpose.

.....
Julie Anne Corley et al v. Monticello Vineyards, Inc.

26CV001522

PETITIONERS’ APPLICATION COMPELLING ANNUAL MEETING OF
SHAREHOLDERS

TENTATIVE RULING: The Application is GRANTED. Monticello Vineyards, Inc. shall hold its annual meeting of shareholders on October 21, 2026, at 10:00 a.m., in person and by simultaneous electronic video screen communication. The record date for determining the shareholders entitled to notice of and to vote at the meeting shall be May 21, 2026.

Petitioners Julie Anne Corley, Carolyn Corley Burgess, Chris Corley and Marilyn Corley apply, pursuant to California Corporations Code section 600, subdivision (c), for an order compelling respondent Monticello Vineyards, Inc. (MV) to hold its annual meeting of shareholders.

Good cause appearing, and no opposition having been filed, the Motion is GRANTED.